

STATE OF NEW YORK

8241--A

2025-2026 Regular Sessions

IN SENATE

May 27, 2025

Introduced by Sen. HARCKHAM -- (at request of the Environmental Facilities Corporation) -- read twice and ordered printed, and when printed to be committed to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to the septic system replacement fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraphs (c), (d), (e) and (f) of subdivision 1 of section 1285-u of the public authorities law, are relettered paragraphs (d), (e), (f) and (g) and a new paragraph (c) is added to read as follows:

(c) "Enhanced septic system project" means an onsite decentralized wastewater treatment system(s) that (i) at a minimum, is designed to reduce total nitrogen in treated effluent to 19 mg/l or (ii) significantly and quantifiably reduces environmental and/or public health impacts associated with phosphorous or per- and polyfluoroalkyl substances and associated compounds in effluent from a cesspool or septic system.

§ 2. Paragraph (a) of subdivision 2 of section 1285-u of the public authorities law, as amended by chapter 363 of the laws of 2017, is amended to read as follows:

(a) There is hereby created the state septic system replacement fund, which shall be administered by the corporation to reimburse property owners or at the written request of a property owner, the septic system installer contracted by the property owner, for up to (i) fifty percent of the eligible costs incurred for eligible septic system projects, provided that no property owner shall be reimbursed more than ten thousand dollars and no septic system installer may be reimbursed more than ten thousand dollars per property for such projects; or (ii) seventy-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 five percent of the eligible costs incurred for enhanced septic system
2 projects, provided that no property owner shall be reimbursed more than
3 twenty-five thousand dollars and no enhanced septic system installer may
4 be reimbursed more than twenty-five thousand dollars per property for
5 such projects.

6 § 3. This act shall take effect immediately and shall apply to all
7 enhanced septic system projects for which a property owner has signed a
8 participation agreement with a participating county on or after such
9 date.